



University of St.Gallen

Introduction to Constitutional Law and Public International Law

Exercise 3: Validity of Popular Initiatives

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Democracy

- "Government of the people, by the people, for the people"
Abraham Lincoln, 1863
- All state power is based on the will of the people (demos; kratos)
- Three basic forms of democracy:
 - Direct democracy
 - Semi-direct democracy (CH)
 - Representative democracy

Semi-Direct Democracy: Instruments 1/2

- Referendum
 - Constitution
 - Act of parliament
 - Administrative act
 - International treaty
- Popular initiative (specific draft or general proposal)
 - Revision of the constitution
 - Act of parliament
 - Administrative act

Semi-Direct Democracy: Instruments 2/2

- Right to recall (complete authority or specific officials)
 - Parliament
 - Government
 - Judges
- Extended right to vote
 - Head of state
 - Government
 - Officials
 - Judges

Validity of a Popular Initiative

- Requirements (Cst. 139 III)
 - Consistency of form (Art. 139 para. 3, Art. 194 para. 3 Cst)
 - Cohesion (or consistency) of subject matter (Art. 139 para. 3, Art. 194 para. 2 Cst)
 - In accordance with mandatory provisions of international law, the *ius cogens* (Art. 139 para. 3, Art. 194 para. 2 Cst)
 - Possibility to implementation (feasibility)
- If the requirements are not met, the Federal Assembly declares the initiative to be invalid (in whole or in part)
- So far, only four popular initiatives have been declared invalid in whole

Examples of *Invalid* Popular Initiatives

Popular initiative for reduced military spending and improved peace policy

- Aimed to progressively reduce military spending
- Savings to be invested in international peace policy and national social security
- Declared invalid in 1995 for violating consistency of subject matter

Examples of *Invalid* Popular Initiatives

Popular initiative for a reasonable immigration and asylum policy

- Aimed to redefine the term "asylum seeker" and combat illegal immigration
- Asylum and deportation proceedings to be expedited
- Conflicting international treaties to be withdrawn from
- Declared invalid in 1996 for infringing on mandatory provisions of international law

Exercises: Case 1

In 2017, the Swiss People's Party (SVP) launched a popular initiative with the title "Yes to the prohibition of face-veiling". This popular initiative aims at amending the Federal Constitution with Art. 10a Cst (New). The initiative has the following wording:

The Constitution shall be amended as follows:

Art. 10a Cst (New)

Art. 10a Prohibition of Face-Veiling and Asylum Ban

1 It is prohibited to veil the face in public and in any place publicly available or where services are offered to the public. Exempt from the prohibition are sacred places.

2 No one can force someone else to veil the face.

3 There are exceptions to the prohibition to veil the face for health, security, climatic or traditional reasons.

4 Swiss authorities dismiss any application for asylum from applicants originating from Arabic countries. The concerned individuals shall be sent back to their country of origin without delay.

Exercises: Case 1

Question 1: Discuss the validity of the popular initiative “Yes to the prohibition of face-veiling”. Explain your answer with reference to the relevant provisions.

Exercises: Case 1

Compare the current text of Art. 10a Cst with the text below. What is different?

The Constitution shall be amended as follows:

Art. 10a Cst (New)

Art. 10a Prohibition of Face-Veiling and Asylum Ban

1 It is prohibited to veil the face in public and in any place publicly available or where services are offered to the public. Exempt from the prohibition are sacred places.

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4 Swiss authorities dismiss any application for asylum from applicants originating from Arabic countries. The concerned individuals shall be sent back to their country of origin without delay.

Exercises: Case 2

In 2019, the association “Wir bestimmen” (“we determine”) launched the popular initiative “Yes to the abolition of time change”. The popular initiative aimed at amending the constitution as follows:

Art. 125 para. 2 Cst (new)

² In Switzerland, Central European Time shall apply throughout the year. There is no time change from winter to summer time and vice versa.

Art. 197 para. 12 Cst (new)

12. Transitional provision to Art. 125 para. 2 (Weight and measures)

The legislature shall adopt the implementing provisions as of January 1 of the year following the adoption of Article 125 paragraph 2 by the People and the Cantons.

Exercises: Case 2

Question: Discuss the validity of the popular initiative “Yes to the abolition of time change”. Explain your answer with reference to the relevant provisions.

Exercises: Case 3

The Green Party of Switzerland (“Grüne Partei”) launches the popular initiative “Stop Global Warming”. The popular initiative aimed at amending the constitution as follows:

Art. 74a Cst (new)

- ¹ The Confederation and the cantons shall assume their responsibility in counteracting climate change.
- ² The Confederation shall decide on measures to mitigate the risk of economic activities having detrimental effect on the climate.
- ³ In particular, such measures shall target sources of harmful emissions in any area, such as industrial production or traffic.
- ⁴ The Confederation and the cantons shall cooperate in the implementation of such measures.

Art. 131a Cst (new)

- ¹ The Confederation has the sole authority to levy a tax on CO₂ emissions.
- ² The tax rate of CHF 96 per ton of CO₂ shall be increased to a minimum of CHF 192 per ton of CO₂.
- ³ The funds collected shall be directed towards the investment in the International Foundation for the Protection of Arctic Species (IFPAS).

Exercises: Case 3

Question: Discuss the validity of the popular initiative “Stop Global Warming”. Explain your answer with reference to the relevant provisions.